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Santa Clara County Leaders Cut Out Flock Safety in New Surveillance Policy

By [Joseph Geha](#) Feb 25, 2026

Updated 1:16 pm PT

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An automated license plate reader is seen mounted on a pole on June 13, 2024, in San Francisco, California. Santa Clara County Supervisors amended their own policies to

Santa Clara County leaders are distancing themselves from automated license plate reader company Flock Safety due to growing concerns about the use of its data for immigration enforcement.

A split decision on Tuesday afternoon by the Board of Supervisors to effectively cut ties with Flock brings the county in league with dozens of other local governments that have canceled or paused contracts with, or otherwise separated from, the prolific license plate reader vendor in recent months.

The severings follow media reports that federal agencies like Customs and Border Protection and Immigration and Customs Enforcement were able to access data from vast local Flock camera networks across the country, at times even while local police departments and city officials said they were unaware the data sharing was happening. In some cases, the data sharing went directly against local or state policies.

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“I do not believe the County of Santa Clara should be doing business with Flock,” District 2 Supervisor Betty Duong said at a press conference on Tuesday morning.

“Flock is a problematic company, and their reported conduct and sharing of private data is incompatible with our county’s values, my personal values and the values that I promised the voters of District 2 that I would uphold, and with multiple policies that we as a board have unanimously approved in recent years,” Duong said.



While there are many license plate reader vendors, Flock has become one of the largest suppliers, with tens of thousands of cameras in more than 5,000 cities and counties around the nation.

The board voted 3-2 in favor of amending its own policies to effectively render Flock cameras useless in Cupertino and Saratoga, two South Bay cities that currently contract with the Santa Clara County Sheriff's Office for public safety services.

The board's decision also applies to Los Altos Hills, though that small town's leadership decided to terminate its contract with Flock last month.

Because the sheriff's office runs law enforcement for those three places, it also oversees the license plate cameras that those cities and towns use. All three have relied on Atlanta-based Flock.

Under the newly updated county "Surveillance Use Policy" adopted by the board, the sheriff's office will no longer access or use any data sourced from a Flock camera.

"Effective immediately, the sheriff's office and the staff cannot operate, manage or touch the cameras, the data, transmission, anything from ALPRs that are operated by Flock, vended by Flock," Duong told KQED.

While the county doesn't have the authority to force those cities to end their Flock contracts, the change in policy appears to make the images and data being logged by those cameras moot, as there isn't another law enforcement agency to pursue leads it generates.



Cupertino City Manager Tina Kanoor confirmed Tuesday that the city's Flock contract is active.

“We will be evaluating the agreement based on the county’s decision and other considerations at the moment, such as our upcoming law enforcement contract with the county and the budget,” Kapoor said.

Duong noted that if Cupertino or Saratoga were to find new vendors for license plate readers, the sheriff’s office would likely be able to quickly resume oversight and operation of that technology.

However, some county leaders raised broader concerns about the technology of ALPRs, which, in Flock’s case, record not only a car’s license plate, but also its make and model, color and defining features like roof racks and bumper stickers.

Supervisor Susan Ellenberg voted against the change in policy on Tuesday because she feels license plate readers in general represent an “excessive invasion of privacy,” and that those concerns outweigh any public safety benefit.

“Flock is particularly problematic. But I differ from my colleagues in that I don’t believe they are an outlying bad actor and alternatives are not necessarily any safer,” Ellenberg said during the county board meeting.

“I am really existentially troubled by the expansion of the surveillance state and its contribution to the erosion of democracy, civil liberties and other protections that actually create safe communities,” Ellenberg said.

“Alleviating poverty and ensuring stable housing, sufficient nutrition, access to health care and education, clean and well-lit streets, of course, create more safety than surveillance cameras, even when used under the strictest use policies,” she said.



Law enforcement agencies are deploying vehicle-tracking networks with settings that some advocates say can make local data nationally searchable. (Courtesy of Flock Safety)

Nick Hidalgo, a senior staff attorney with the ACLU of Northern California, said the county's move was encouraging but that it does not go far enough.

"There is no guarantee that rival ALPR vendors will do better," he said. "These companies market their systems as easy to share with other law enforcement agencies — sharing is by design, and vendors are incentivized to facilitate it."

A spokesperson for Flock Safety, Paris Lewbel, said in an emailed statement that the company "is proud of the impact our technology has had in helping solve crimes and locate missing people in Santa Clara County and across the state of California."

Locally, other cities have also taken steps to back away from Flock.

Mountain View's City Council voted unanimously to **end a contract and terminate** automatic license plate readers on Tuesday.

Councilmember Ellen Kamei said the city learned a lesson.

"Acknowledging a situation, acting quickly and communicating openly reflects integrity and public service," she said. "We've talked about how our city is known as a community for all, and being a community for all means telling the truth, even when it's difficult."

Santa Cruz became the first city in California to **sever ties with Flock** in January, following similar data-sharing problems, which violate longstanding state laws against sharing ALPR data with federal agencies and other agencies out of state.



In the wake of those cases, where local officials blamed Flock’s software platform for the unwanted searches of their databases, the company has pushed back.

“Each Flock customer fully owns and controls 100% of its data. Only our customers have sole authority over if, when, and with whom information is shared,” Lewbel, the Flock spokesperson, said. “By default, vehicle data is automatically deleted after 30 days unless local law or policy requires otherwise. Flock never shares data on its own, and customers may limit, revoke or deny data access at any time.”

According to NPR, at least 30 localities have either deactivated their Flock cameras or canceled their contracts since the beginning of 2025, with many of the changes happening this year.

The Trump administration’s crackdown on illegal immigration has heightened awareness and concern around such technologies, but privacy and civil liberties advocates have long pushed back against the growing webs of long-lasting data being created about people all over the country.

A group of civil-liberties and immigrant-support organizations [sued San José](#) over what they allege is the city’s “deeply invasive” mass surveillance network of hundreds of Flock cameras.

The city, the largest in the Bay Area, holds onto all ALPR data for a year, well beyond the 30-day default of Flock, whether a car is implicated in a crime or not.

The county’s new policy will also require immediate reporting to the board if any unauthorized ALPR data under county control is shared with the federal government. It will also require audits of the sheriff’s office’s compliance with the new policy every four months by the Office of Correction and Law Enforcement Monitoring.

KQED’s Senior Editor [Alex Emslie](#) contributed to this report.

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